



Appeal Decision

Site visit made on 22 June 2026

by **N Perrins MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 25 August 2026

Appeal Ref: 6000903

Kilcummer Barn, Tregeath Lane, Trewarmett, Tintagel, Cornwall PL34 0EA

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mrs Andrea Egas-Kitchener against the decision of Cornwall Council.
 - The application Ref is PA25/02674.
 - The development proposed is for the change of use and conversion of piggery to form a holiday cottage.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. A revised National Planning Policy Framework (the Framework) was published on 17 August 2026 and applies to decision-making from that date. It post-dates the parties' representations, and I have had regard to it in the determination of this appeal. I am satisfied that no party has been prejudiced by its publication, as the determinative matters in this appeal were already in issue between the parties.
3. Although described as a holiday cottage and capable of control by an occupancy condition, the unit would be self-contained with the physical characteristics of a dwelling, and would not lose those characteristics through holiday, part-year or successive occupation. Whether the proposal is properly a dwelling for the purposes of Policy 7 of the Cornwall Local Plan Strategic Policies 2010-2030 (CLP), or tourist accommodation properly assessed instead under Policy 5, raises a genuine question of characterisation. However, both main parties have addressed the appeal on the basis that Policy 7 is engaged. I also note that Framework policy S5(1)(c) applies substantively the same construction-quality test to the re-use of any existing building outside a settlement regardless of that characterisation. I have therefore considered the proposal against both Policy 7 and Policy 5, reflecting that the application was made, and permission is sought, for a tourism use.

Main Issues

4. The main issues are whether:
 - (i) the site is an appropriate location for the proposed accommodation, having regard to accessibility, reliance on the private car, and locational necessity;

- (ii) the proposal would re-use a building appropriate to retain and suitable for conversion; and
- (iii) the proposal is exempt from the mandatory biodiversity gain requirements or, if not, whether its failure to meet them provides a reason to withhold planning permission.

Reasons

Location of development

5. The appeal site comprises a single-storey former piggery of breeze block construction, located in open countryside around 400 metres from Trewarmett and over a kilometre from Tintagel. Although there are scattered dwellings in the wider area, it forms no part of any group or cluster of buildings and is separated by open land from Trewarmett and other built development. Trewarmett is a hamlet and is not defined as a settlement in the development plan or the Framework. The site therefore lies outside of a defined settlement.
6. Criterion 3 of Policy 5 supports tourism accommodation of a scale appropriate to its location and accessibility by a range of transport modes, and requires a well-balanced mix of economic, social and environmental benefits. Consistent with the case officer's assessment, I agree that, given its modest scale, the proposal would be of an appropriate scale to its location and accessibility.
7. Nonetheless, as observed on my site inspection the lanes around the site are narrow, hedge-enclosed, unlit, and lack footways. This is consistent with the previous Inspector's finding, in the 2020 appeal¹ for a dwelling on this site, of little substantive evidence that local footpaths would provide suitable access to local services and facilities. Walking for day-to-day purposes is largely unrealistic, and cycling is unattractive and unsafe in poor weather or after dark. The nearest bus stops, on the B3263, are served by the 95, which runs every two hours between 0735 and 1845, Monday to Saturday only. Given this frequency, I am not satisfied it would provide a realistic alternative to the car for all journeys made by occupiers.
8. The holiday let use would not reduce this reliance, since visitors would be at least as car-dependent as residents, given they are likely to travel to attractions beyond the site. This reliance on the car would not minimise travel need or support the modal hierarchy in Policies C1 and T1 of the Climate Emergency Development Plan Document 2023 (CEDPD) and would generate environmental harm that is not offset by the modest economic benefits. Based on the evidence before me, the development would not achieve the well-balanced mix of economic, social and environmental benefits required by criterion 3 of Policy 5.
9. The Council's Statement also raised the point that criterion 1(c) of Policy 5 requires an overriding locational and business need for tourism development to be in the countryside. That concept is reflected in Framework policy S5(1)(b), which supports rural tourism development outside settlements only where such a location is shown to be necessary. The appellant's case addresses the economic contribution the proposal would make to the tourism economy generally, but does not identify why this location, rather than a site within or better related to a settlement, is necessary for the tourism use proposed.

¹ Appeal Ref: APP/D0840/W/19/3243906

10. The appellant also relies on the Framework's provision that development should be refused on transport grounds only where there would be an unacceptable impact on highway safety or a severe adverse impact on the road network, now reflected in Policy TR6(4). That is not the relevant test in this case because TR6(4) addresses matters of capacity and safety, and neither issue is in dispute here. The concern here is the car-dependent travel pattern the development would generate, as explained above. Moreover, Policies TR3(1)(e) and E4(2) of the Framework both expect proposals to take opportunities to improve rural connectivity or to use previously developed or well-related sites where such opportunities exist, and the appeal proposal has not been shown to do so given the site is relatively inaccessible by sustainable modes of travel.
11. In conclusion, for the reasons stated it has not been demonstrated that the proposal would be in an acceptable location for a holiday cottage. The proposal, therefore, conflicts with Policies 2 and 5 of the CLP, and Policies C1 and T1 of the CEDPD. It also does not fall within the exception provided by Framework policy S5(1)(b), and conflicts with policies TR3 and E4(2) of the Framework.

Re-use of the building

12. As found above, the site's location outside of a defined settlement engages Framework policy S5. If the proposal falls to be assessed as a dwelling, it would, for the reasons given above, also be an isolated home for the purposes of Framework policy S5(3), such that Framework policy HO11 would be the applicable test. However, it is unnecessary for me to resolve whether that characterisation is correct, because any re-use of the existing building independently engages policy S5(1)(c), which requires the building to be of permanent and substantial construction whether or not HO11 applies.
13. Both parties have, as explained in Preliminary Matters, proceeded on the basis that Policy 7 is engaged. That policy permits new homes in the open countryside only in special circumstances, restricted to five categories. The only one that could apply here is criterion 3, which concerns the re-use of suitably constructed, redundant, disused or historic buildings that are considered appropriate to retain and would lead to an enhancement of the immediate setting, the building having an existing lawful use and being at least ten years old. I am satisfied that there is no dispute the age and lawful use conditions of Policy 7 are met.
14. When considering the requirements of Policy S5 of the Framework and Policy 7 of the CLP together, the dispute is whether the building is suitably constructed and appropriate to retain. In this regard, I acknowledge that the appellant contends that the works would be repair and adaptation rather than reconstruction. The appellant also refers to a report confirming sound load-bearing walls and only limited repair.
15. However, no such report has been submitted to the appeal, and the 2019 survey appended to the Council's statement does not support the appellant's position in these regards. That survey envisaged a new steel frame on new foundations to carry the roof and wall loads, together with a new ridge beam and roof structure, so the completed building would derive its structural integrity from new work rather than from the existing fabric. The building is now seven years older and there is nothing to suggest structural improvement, and I am unable to conclude on the evidence before me that it is suitably constructed for conversion.

16. Nor am I persuaded that retaining the building as a phase of post-war agricultural modernisation weighs significantly in the proposal's favour. That characteristic speaks to the building's historical interest, not to whether it is suitably constructed for conversion, and it does not overcome the absence of evidence on that point addressed above. Had the structural evidence supported conversion, the building's utilitarian origins would not, of themselves, have made it inappropriate to retain for the purposes of Policy 7.
17. I have also considered the permission at Land North West of Trewinnick Farm and the appeal decisions cited. They confirm that partial replacement of structural elements is not necessarily rebuilding, and that the judgement is one of degree. However, each turned on its own evidence, and the Trewinnick scheme was supported by a structural survey finding the building sound and capable of conversion. No such evidence is before me, and those decisions do not, therefore, provide any justification for the proposal in this case.
18. Policy 21 of the CLP also does not assist the appellant. The appellant's case relies in part on the embodied-carbon benefit of reusing the existing structure rather than demolishing and rebuilding. However, no such benefit has been objectively quantified, and the information before me indicates that substantial new works, such as a new steel frame, new foundations and an entirely new roof structure, would in any event replace, rather than preserve, the greater part of the building's embodied carbon. Agricultural buildings are also excluded from Policy 21's definition of previously developed land, the site is not sustainably located for the reasons above, and no intensified-agricultural-use benefit has been demonstrated.
19. In conclusion, I am not satisfied the evidence adequately demonstrates that the building is capable of conversion without, in substance, amounting to a new building in the countryside, which is a form of development not supported by the development plan, nor falling within the provisions for proposals outside settlements as set out in Framework policy S5(1)(c).

Biodiversity Net Gain

20. The Biodiversity Net Gain exemption applies only below defined habitat thresholds, which it is for the appellant to demonstrate are met. It is not clear how the appellant arrived at the figures relied on, since the exemption statement omits the grey water system, foul treatment plant, charging point and associated excavation, and gives a site area of 123.20 square metres, whereas the Council's Statement records that the area within the red line boundary, when measured, totals over 1,000 square metres. Without a habitat plan, survey or metric establishing the baseline against the correct site parameters, I cannot be satisfied that the exemption applies.
21. Nor is there any metric or indicative habitat plan showing the mandatory biodiversity gain objective could be met if the exemption does not apply. The appellant has relied solely on the claimed exemption, and the Council has not proposed a condition capable of resolving that deficiency.
22. In the absence of sufficient evidence to demonstrate otherwise, I am not satisfied that the exemption applies, nor that the biodiversity gain condition deemed imposed by paragraph 13 of Schedule 7A to the 1990 Act would secure the mandatory biodiversity gain objective without any evidential basis for it. The proposal therefore conflicts with Policy G2 of the CEDPD and Framework policy N2, as well as the mandatory biodiversity gain requirements under Schedule 7A to the 1990 Act.

Other Matters

23. The site lies within the Cornwall National Landscape and Pentire Point to Widemouth Heritage Coast. The 2020 appeal Inspector found that residential conversion would not be incongruous and would improve the building's appearance, and the Council reached the same view. Given the retention of the existing footprint, scale and form, I also reach the same conclusion and find the proposal accords with Policy 23 of the CLP and saved policy ENV1 of the North Cornwall Local Plan.
24. No objection arises in relation to neighbour amenity, highway safety, drainage, contaminated land or sustainable construction, and I have no reason to reach a different view.

Planning Balance and Conclusion

25. Section 38(6) of the Planning and Compulsory Purchase Act 2004 requires the appeal be determined in accordance with the development plan unless material considerations indicate otherwise. As set out, the proposal conflicts with Policies 2, 5 and 7 of the CLP and Policies C1, G2 and T1 of the CEDPD. Although no conflict arises with Policy 23, the development plan, read as a whole, is not complied with.
26. A single holiday unit would make a modest economic contribution to an established tourism area, but no evidence of unmet need for this type of development has been provided, so I give it limited weight. I give any embodied-carbon benefit no weight, since the evidence indicates the works would not, in substance, preserve the building's existing fabric.
27. Against these benefits, the absence of any realistic alternative to the car means the development would conflict with the development plan, and the site's location has not been shown to be necessary for the tourism use proposed. I give this considerable weight, not solely because visitors would travel by car, but because the proposal would introduce permanent accommodation in a location where car reliance is unavoidable and no need for the development has been demonstrated to offset that harm. Independently of that finding, the proposal has also not been shown to be suitably constructed for conversion and would in substance amount to new residential-type development. The unresolved conflict with the mandatory biodiversity gain requirements adds further weight against the proposal.
28. As the proposal does not fall within any of the categories in Framework policy S5(1), under S5(4) the proposal should be approved only where exceptional circumstances exist and the benefits would substantially outweigh the adverse effects, including to the character of the countryside and sustainable patterns of movement. No such circumstances exist and the limited benefits fall short of that test. Accordingly, there are no material considerations indicating a decision other than in accordance with the development plan.
29. For these reasons, and having regard to all other matters raised, the appeal is dismissed.

N Perrins

INSPECTOR